

PUBLIC SUBMISSION

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General Comment

The potential of AI has been greatly overstated. It does not create anything new, but only regurgitates the work of others in a random form. Because it depends on writing, art, etc., created by others, but does not provide attribution or compensation, it is essentially plagiarism, and violates people's copyright. Because it steals from others' intellectual property, it is damaging to American businesses. Consider, for example, that the Walt Disney company's intellectual property would be damaged, and even their reputation compromised, by certain uses of AI. Imagine Mickey Mouse being used to sell others' products, or Disney princesses "drawn" by AI in sexual contexts. Copyright infringement by AI thus hinders their ability to do business with their products and brand. On the other hand, texts and images generated by AI cannot be copyrighted. Therefore, they are ultimately useless to any business that might generate them, since they cannot be copyrighted, are not owned by the business, and the business therefore cannot benefit from them, since anyone else can use them freely. Given a choice between AI and protecting copyright, businesses and creators will ultimately benefit more from the latter. The development and use of AI must be subject to copyright law.